UNITED STATES FEDERAL COURT

DISTRICT OF OREGON

JERRY NELSON, Plaintiff v. LANE COUNTY GOVERNMENT, IN THE STATE OF OREGON Defendant	) Civil Case Number: 6:25-cv-02031-MTK) PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT AND MEMORANDUM IN SUPPORT

LR 7-1 CERTIFICATION

Plaintiff certifies that on _____, 2026, he conferred in good faith by [☐Telephone/☐Personal Conference] with Defendant's counsel, Mallory R. Beebe, about the proposed amendment. Defendant [☐ Consents to / ☐ Opposes / ☐ Takes no position on] this motion. The parties were unable to resolve the matter without Court action.

Do not file until the preceding certification is complete and accurate.

MOTION

Under Federal Rule of Civil Procedure 15(a)(2), Plaintiff Jerry Nelson respectfully moves for leave to file the proposed First Amended Complaint attached as Exhibit 1.

The proposed amendment replaces the original complaint with a complete pleading that:

identifies the County enforcement file, property, notices, penalties, lien, and collection at issue;

alleges when and how Lane County learned of Plaintiff's disabilities;

describes Plaintiff's requested reasonable modifications and the County's response;

clarifies the process Plaintiff received or was denied;

identifies the official County practices and decisions alleged to have caused the constitutional injuries; and states Plaintiff's claims separately under Title II of the Americans with Disabilities

Act and 42 U.S.C. § 1983.

Plaintiff requests an order granting leave to amend and permitting him to file a clean First Amended Complaint within ten days after entry of the order, or within any other period set by the Court.

MEMORANDUM IN SUPPORT

I. Background

Plaintiff filed this civil-rights action on October 31, 2025. Defendant filed a motion to dismiss on March 17, 2026. Plaintiff filed an opposition on May 18, 2026 and requested, in the alternative, permission to cure any pleading deficiencies.

Defendant's motion argues, among other things, that the original complaint did not sufficiently identify the underlying code violations and did not allege facts showing that Lane County knew of Plaintiff's disabilities, received a request for a reasonable modification, or denied such a request.

Plaintiff is self-represented. After reviewing Defendant's motion and gathering his records, Plaintiff prepared a complete proposed First Amended Complaint with additional factual allegations addressing those issues.

II. Legal standard

Federal Rule of Civil Procedure 15(a)(2) provides that the Court should freely give leave to amend when justice so requires. In deciding whether to grant leave, courts consider undue delay, bad faith, repeated failure to cure deficiencies, undue prejudice, and futility. Foman v. Davis, 371 U.S. 178, 182 (1962).

District of Oregon LR 15-1 requires a motion for leave to describe the proposed changes and requires a changes-shown copy of the proposed amended pleading as an exhibit. Exhibit 1 provides the complete proposed pleading and identifies the replacement text as new.

III. Leave to amend should be granted

A. The amendment is sought in good faith

Plaintiff seeks amendment to present a clear and complete statement of the facts and claims, including details responsive to the alleged deficiencies identified in Defendant's motion. He does not seek amendment to harass Defendant or needlessly prolong the case.

B. The proposed amendment supplies material factual detail

The proposed pleading identifies the enforcement matter and explains the alleged connection between the County's notices, daily penalties, lien, and collection of money. It also adds facts concerning 11/06/2024 meetings with doctors, the disability information provided to County officials, the modification requested, and the County's alleged response.

These allegations address Defendant's contention that the original complaint did not plead County knowledge, a requested modification, or a denial. The proposed complaint also clarifies the alleged property deprivation and why Plaintiff contends the accumulated fine was grossly disproportionate.

C. Amendment will not unfairly prejudice Defendant

This case is at the pleading stage. Defendant has not answered, and the proposed amendments concern the same County enforcement matter and injuries described in the original complaint. Defendant will have an opportunity to answer or otherwise respond to the amended pleading.

D. Any delay is limited and excusable

Plaintiff is self-represented and prepared the proposed amendment after Defendant's motion identified the need for more specific allegations. Plaintiff delay was not due to a lack of interest. He was diligently trying to get AI legal assistance and he is fully prepared to move forward with all necessary legal steps, comply with the Court's schedule, and advance this case toward trial or resolution.

We kindly request that the Court schedule a status conference at it's earliest convenience to

establish new deadlines and get this matter back on track.

E. The proposed claims should be evaluated on the complete pleading

The proposed complaint alleges additional facts relevant to Plaintiff's ADA, procedural-due-process, and Excessive Fines Clause claims. At minimum, the proposed amendment permits those claims to be evaluated on a clearer and more complete factual record. Plaintiff respectfully submits that amendment is not futile.

IV. CONCLUSION

Plaintiff respectfully requests that the Court grant leave to file the proposed First Amended Complaint and permit Plaintiff to file a clean copy within ten days after entry of the Court's order, or within another period established by the Court.

DATED: _____, 2026

Respectfully submitted,

x _____

Jerry Nelson

Plaintiff, Self-Represented

CERTIFICATION OF SERVICE

I hereby certify that on _____, 2026 I served the PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT AND MEMORANDUM IN SUPPORT document by placing a copy in a first-class postage-paid envelope in Eugene Oregon for delivery by U.S. Mail to the address set forth below:

Lane County Government, in the State of Oregon
C/O Mallory R Beebee, OSB #115138
LANE COUNTY OFFICE OF LEGAL COUNSEL
125 East Eight Avenue
Eugene Oregon 97401

DATED _____, 2026

x_____
Plaintiff, Jerry Nelson